

SEPARATE OPINION OF M. SÉFÉRIADÈS.

[*Translation.*]

I am unable, in the case on which the Court has just given its decision, to agree with the opinion of the majority.

The chief reasons which lead me to dissent from it are the following :

A.—FACTS.

The judgment gives a very accurate statement of the facts, which I can accept as it stands, though there are certain points in it which I shall mention as definitely supporting me in a conclusion opposed to that of the Court.

In the case before the Court, the interests directly in conflict are: on the one hand, the pecuniary interests of the firm Collas & Michel, supported by the French Government; and, on the other hand, the interests of Greece, in the sphere of administration and national defence.

The conflict arose as a result, more particularly, of the following events:

On April 14th, 1913—by the Gregorian Calendar which I shall alone make use of—a concessionary contract, known as the Lighthouse Contract, was signed between the firm Collas & Michel and the Turkish Government, the latter being authorized to take this step by a provisional law. This contract was to expire on September 4th, 1949, and its object was to prolong a concession first granted in 1860, and subsequently renewed, first in 1879 and again in 1894; the renewal of 1894 was to expire on September 4th, 1924. Thus, the “*new concession*” of April 14th, 1913—here I employ the actual terms of the contract of that date—was signed more than eleven years before the expiry of the concession running till 1924; this fact has been ascribed to the urgent financial needs of the Porte.

The concessionary contract of April 14th, 1913, which was signed by the Ministers of the Ottoman Empire, of the one part, and by the firm Collas & Michel of the other part, was not at that time communicated to the Greek Government, nor was the latter aware of its existence. Moreover, the provisional law of that date, which authorized the signature of the concession, was not made public till after it had appeared in the Official Gazette of the Ottoman Empire, dated May 27th, 1913.

It should be added that neither the contract nor the above-mentioned law could begin to be executed *until after September 4th, 1924*, the date on which the concessionary contract signed in 1894 was to expire.

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However, long before the signature of the concessionary contract of April 14th, 1913, both *the administration and the usufruct* of public property in a part of the Ottoman Empire which, in normal circumstances, would have been covered by this contract, had passed out of the hands of the said Empire.

From the very outset of the Balkan war (Oct. 1912) Turkish territories were occupied by the Greek armies: Nay, more, on March 31st, 1913—that is, a fortnight *before* the signature of the concessionary contract of April 14th, 1913—the Great Powers, including France, intimated in a collective note to the Government of the Empire, *which had already accepted their mediation*, that they “had agreed to propose to the belligerent States” that “all the territories situated to the west of the Enos-Midia line should be ceded by Turkey to the Allied States”, and that “the settlement of the question of the islands in the Aegean Sea” should be “left to the decision of the Powers”. It was on the basis of that agreement that the Treaty of London was signed on May 30th, 1913.

“No exchange of ratifications of this Treaty appears to have taken place”, so we read in de Martens (*Recueil des Traités*, 1915, 3rd Series, Vol. 8, p. 16, note). Nevertheless, Greece and Turkey stipulated, in Article 15 of the Treaty of Athens, that they undertook “to uphold so far as the same concern them, the provisions of the Treaty of London of May 30th, 1913”.

The Treaty of Athens was signed on November 1st/14th, 1913; it was ratified by a Turkish law of November 10th, 1913, in which the text of the Treaty was reproduced in full; ratifications were exchanged at Athens on November 29th of the same year. Article 5 of the said Treaty runs as follows:

“Rights acquired *up to the time of occupation of the ceded territories*, as well as judicial decisions and official deeds given by competent Ottoman authorities, shall be respected and inviolate until legally disproved.—This Article does not in any way prejudice the decisions which may be rendered by the Financial Commission on Balkan Affairs sitting at Paris.”

Thirteen months after this Treaty—to be exact, on December 31st, 1914—the Ottoman Parliament approved the provisional law relating to the Lighthouse Contract of April 14th,

1913. This approval was given at a time when Turkey and France were at war with one another; at a time when the French laws had imposed penalties up to five years imprisonment on any correspondence with enemy countries and when Turkey had even forbidden all correspondence with enemy countries, whether directly, or by transit through other States (Cabinet decision of Nov. 27th, 1914).

Matters remained in this situation until the signature of Protocol XII of the Treaty of Lausanne in 1923.

That Protocol, which was signed by England, France, Italy, Roumania, Greece and Turkey, contains among others three Articles, 1, 9 and 10, which are invoked by the Parties to the suit, and which run as follows:

“Article 1.—Concessionary contracts and subsequent agreements relating thereto, duly entered into before the 29th October, 1914, between the Ottoman Government or any local authority, on the one hand, and nationals (including companies) of the contracting Powers, other than Turkey, on the other hand, are maintained.

Article 9.—In territories detached from Turkey under the Treaty of Peace signed this day, the State which acquires the territory is fully subrogated as regards the rights and obligations of Turkey towards the nationals of the other contracting Powers and companies in which the capital of the nationals of the said Powers is preponderant, who are beneficiaries under concessionary contracts entered into before the 29th October, 1914, with the Ottoman Government or any local Ottoman authority. The same provision will apply in territories detached from Turkey after the Balkan wars so far as regards concessionary contracts entered into with the Ottoman Government or any Ottoman local authority before the coming into force of the treaty providing for the transfer of the territory. This subrogation will have effect as from the coming into force of the treaty by which the transfer of territory was effected, except as regards territories detached by the Treaty of Peace signed this day, in respect of which the subrogation will have effect as from the 30th October, 1918.

Article 10.—The provisions of Section I of this Protocol, except Articles 7 and 8, will be applied to the contracts referred to in Article 9....”

After these different diplomatic and legal happenings, there arose between the firm Collas & Michel and the Greek Government “a dispute concerning the validity as against Greece of the contract concluded between the said firm and the former Ottoman Empire on April 14th, 1913, extending the existing concession”.

The French Government, being convinced that its nationals were justified in their claim, made representations to the Greek Government in favour of the concessionnaires.

In spite of these representations, the Greek Government adhered to its opinion that, as the concessionary contract of April 1913 had not been duly entered into (*dûment intervenu*) and was not valid, it was not enforceable against Greece.

It was to put an end to this conflict of opinions that the Special Agreement was signed on June 15th, 1931, submitting the dispute to the Permanent Court of International Justice.

B.—QUESTIONS OF LAW.

Questions put to the Court.

The Special Agreement, in virtue of which the present dispute is submitted to the Permanent Court of International Justice, is solely designated to obtain the Court's decision on "a dispute concerning the validity *as against Greece* of the contract concluded" on April 14th, 1913, between the firm of Collas & Michel and the former Ottoman Empire "extending the existing concession". In order to be in a position to decide, the Court has to consider, more especially, whether the contract in question "was duly entered into", since, if it were not found to be so, it could not be regarded as operative against the Greek Government. However, in my view, even supposing that the contract of April 1913 was duly entered into, there is nothing to prevent the Court from holding that it could not produce effects in regard to Greece.

Thus, in interpreting the Special Agreement, I shall consider it as a whole, taking the preamble in conjunction with Article I.

My method of interpreting the Special Agreement as a whole is in no way unusual. It was definitely adopted by the Court in its Advisory Opinion of August 12th, 1922, where it is stated, in so many words, that in order to understand the true import of a treaty "it is obvious that the treaty must be read as a whole, and that its meaning is not to be determined merely upon particular phrases which, if detached from the context, may be interpreted in more than one sense"¹.

Moreover, this method of interpretation is one that is generally accepted. MM. Huber and Anzilotti advocated it in the *Wimbledon* case. There is no disagreement on this point among learned authorities.

¹ See *Court's Publications*, Series B., Nos. 2 and 3, p. 22.

After indicating these points, which I feel it is imperative to consider, and founding myself on the Special Agreement, I shall proceed to ask myself the following questions:

I.

In regard to the contract entered into on April 1st/14th, 1913, between the French firm Collas & Michel and the Ottoman Government for the extension of the previous concessionary contracts of the said firm from September 4th, 1924, to September 4th, 1949: (a) Was that contract duly entered into—that is to say did it fulfil the conditions of substance and form requisite under Ottoman law to enable it to become definitive and as such to be enforceable against Greece? (b) Did it cover the lights situated in the territories occupied by Greece at the time of signature? (c) Was it not, in fact, disapproved in so far as concerns the lights in question?

In my opinion the contract of April 1st/14th, 1913, was not duly entered into, nor did it even cover the lights situated in the territories occupied by Greece at the time of signature. Furthermore, even if it had covered them it was definitely disapproved by Turkey; consequently, it can neither be considered valid as regards Turkey—at any rate so far as concerns lights which had passed out of her hands when the contract was signed; nor *a fortiori* can it be operative as regards Greece.

For:

a.

The concessionary contract of April 1st/14th, 1913, had not at that date become complete and definitive as between the contracting Parties; for it could be disapproved by a fresh legislative decision, a possibility which was contemplated by the Turkish law itself. Accordingly, it was not duly entered into; the expression "contract duly entered into" could not, in the present case, possess any other meaning than that of a complete and definitive contract.

On all these points I am wholly in agreement with the arguments in M. Anzilotti's dissenting opinion.

Indeed, to arrive at an interpretation of the words "duly entered into" contrary to that given by M. Anzilotti, I should have to proceed in the following way in direct opposition to my legal conscience:

(a) delete the categorical reference to Article 10 in Articles 1 and 9 of the Protocol of Lausanne;

(b) consider the word "*dûment*", which appears both in the Protocol and the Special Agreement, as entirely superfluous;

(c) refrain from any reference to the preparatory work of the Lausanne Conference, although that work is alone capable of throwing a clear light on the meaning of that expression ;

(d) consider Article 2 of the aforesaid Protocol as superfluous ;

(e) declare that the subrogation of the succession States as regards the rights and obligations of Turkey means, on the one hand, subrogation as regards the *whole* of the obligations, and, on the other hand, subrogation as regards a *part* only of the rights possessed by that Power.

b and c.

In reality, the 1913 contract and the *provisional law* of the same date, assuming that they also covered lighthouses situated in the territories already occupied by Greece—a question which will shortly be considered—had been definitively *disapproved* by Turkish law ; this law was :

the law of November 10th, 1329 (1913), ratifying the Treaty of Athens of November 1st/14th, 1913.

For if we compare the *provisional law* of April 1913 with the *law of November* of the same year ratifying the Treaty of Athens, we find that there were two instruments—if it is assumed that the first of them also provided for the operating of the lights in the territories already occupied by Greece—containing provisions which are entirely and definitely inconsistent :

(a) on the one hand, *the provisional law* granted to the firm Collas & Michel a concession also covering the operation of lighthouses situated in the territories occupied, and shortly afterwards annexed, by Greece ;

(b) on the other hand, *the Turkish law*, which ratified the Treaty of Athens, stated quite simply but clearly that Greece was to respect rights acquired *up to the time of her occupation* of the territories ceded to her by that Treaty ; accordingly, all rights granted in these territories after the occupation were excluded.

This inconsistency cannot be disputed.

Nevertheless, it cannot really give rise to any serious conflict. For it is obvious that the provisional law of April 1st/14th, 1913, might have been wholly or partly disapproved by the Turkish Parliament and that such disapproval could not entitle the beneficiaries of this law to put forward claims based on the theory of vested rights, since the possibility of disapproval had always to be reckoned with, owing to the intrinsic nature of provisional laws, and of the Turkish law of 1910 relating to concessions, and also owing to the special circumstances in which the provisional law in question was enacted.

Let us examine this question more closely.

There are manifestly two different cases in which a provisional law or a decree law might be *disapproved*:

(a) The case in which Parliament, having been requested by the Government to approve a provisional law, *expressly* refuses to do so. This case appears never to have occurred in Turkey, according to what is stated in the legal opinion filed with the Court by the Agent of the French Republic.

(b) The case in which Parliament finds it superfluous "to approve provisional laws *already revoked by the executive authority or replaced by other laws....*". This case has arisen more than once in Turkey, *according to the said legal opinion*, of which I have here quoted the actual words.

Thus, it has repeatedly occurred in Turkey that provisional laws have been either revoked by the Government or replaced by other laws.

The legality of this disapproval has never been contested.

That is exactly what happened in the case in point.

The *Turkish law* ratifying the Treaty of Athens and therefore Article 5 of that Treaty declared that Greece *was not bound to respect rights acquired after her occupation* of the territories ceded to her by the said Treaty; thereby it *most unmistakably replaced* the provisional law of April 14th, 1913, at the very least as regards the territories ceded to Greece. The Turkish law in question is that of November 10th, 1329. It is to be found in the Collection of (Turkish) laws, Volume VII, page 45.

Thus, at the end of November, 1913, the *provisional* Turkish law of April 14th/May 27th of the same year—even assuming that it applied to the lights in the territories already occupied by Greece at that period—had been quite evidently—and in my view indisputably—*revoked and replaced* by the Turkish law of November 10th, 1329.

It follows that any subsequent approval of the provisional law of April could only affect the concession in so far as concerned territories not ceded to Greece by the Treaty of Athens.

Moreover, the provisional law relating to the concession promulgated on May 27th, 1913, provided for a concession running from September 4th, 1924, to September 4th, 1949, and not for an immediate concession for the operating of the lights in the Ottoman Empire—for that concession was already in existence and would go on running till 1924. Thus, the concessionary contract and the provisional law now under consideration relating thereto, the effects of which were to begin as from September 4th, 1924, were *revoked and replaced* (I will continue to employ the actual words of the Turkish legal opinion) by the law ratifying the Treaty of

November 1913, at any rate as regards the territories ceded to Greece, and they must be considered as never having been in force, even for a day, either in regard to Turkey or to Greece.

It had not been in force in regard to Turkey, for when the latter State revoked the provisional law of April/May 1913, it was simply availing itself of powers conferred on it by its own Constitution.

It had not been in force in regard to Greece, for—at any rate at that period: (1) that State had not only never subscribed to an engagement conferring any rights whatever on MM. Collas and Michel, but, on the contrary, had undertaken, by the clear and precise terms of a treaty, to respect only such rights as had been acquired up to the time of the occupation, in the territories ceded to Greece; and (2) Greece could not legally be subrogated as regards obligations which the Ottoman Empire did not regard itself as having undertaken, for—in conformity with the terms of the Turkish Constitution, as frequently applied in practice—the legislature of that Empire had *revoked* and *replaced* the provisional law relating to the concession in question in so far as concerns the territories occupied by Greece, even if it is assumed that the contract of April 1913 extended to those territories.

Furthermore, it is impossible for me to accept the view that the contracting Parties themselves—that is to say the Turkish Government and the firm Collas & Michel—intended, when they signed the instrument in question, to render a concession which was only to begin running eleven years later, applicable to the territories occupied by Greece at that time.

In truth, if the Turkish Government had contemplated applying the concession to those territories, it would never have signed Article 5 of the Treaty of Athens, which definitely excludes these very territories from the above-mentioned concession. Contracting parties are always assumed to be acting honestly and in good faith. That is a legal principle, which is recognized in private law and cannot be ignored in international law. An honest man does not cede something which he has already ceded to another party. There is no ground for supposing that the Turkish Government in 1913 did anything so irregular as to cede rights to Greece which it had itself ceded to others, only a few months before.

Consequently, the intention of the Turkish Government not to make the concession of April/May 1913 apply to the territories occupied by Greece at that time—and which it well knew it was about to abandon permanently—appears absolutely beyond question.

Nor can one entertain a different opinion as to the intention of the concessionnaires when the latter signed the contract of 1913. For if they had believed that the concession extended also to the territories occupied by Greece:

(a) they would not have failed to protest or even to set diplomatic machinery in motion immediately upon the signature of the Treaty of Athens, which contained Article 5, and which had nothing secret about it, but which deprived them of a part of the area of their concession;

(b) they would not, when they were requested in June/July 1913 by the Financial Commission on Balkan Affairs "to supplement their replies with explanatory notes containing the *proposals and claims* which they thought themselves entitled to formulate" in their capacity as concessionnaires for the operating of the lights in the Ottoman Empire, have failed to state clearly that they had claims in respect of the period of the concession that had still to run until September 3rd, 1949. But they said nothing of the kind in their reply; they simply stated that "the Lighthouse Administration proposed to put forward pecuniary claims in respect of the period of the concession that had still to run *until* September 3rd, 1924....". (See Minutes of the Meetings. Paris, Imprim. nation., pp. 57-62.) And a similar statement will be found in the report of the Committee on Concessions and Contracts (July 18th, 1913). There we read that, though the Lighthouse Company gave information to the Committee concerning "the dates of its successive contracts, including the renewal contract of April 1st/14th, 1913", when asked "*what pecuniary claims it might propose to put forward*", it replied that "these claims would be as follows: *for the period which the concession has still to run until* September 3rd, 1924....¹". Thus, when appearing before the Financial Commission in July 1913, almost on the morrow of the concession of April, it never occurred to the Lighthouse Company to claim, as acquired rights, any rights other than those pertaining to the Company under the concession expiring in September 1924.

In view of the foregoing, the intention of the contracting Parties in April 1913, when extending the concession from 1924 to 1949, not to include therein the lights in the territories which had been occupied by Greece some time before that date, and which it had already been decided that Greece was to annex, appears clear, distinct and indisputable.

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To sum up my opinion on the questions which my conscience compels me to answer, I am forced to reply that

¹ See *ibid.*, p. 141.

the contract of April 14th, 1913, and the provisional law of that date, which form an indivisible whole,

(a) certainly did not cover lights in the territories which were then occupied by Greece, and which were, soon after, definitely assigned to her, since the intention of the Parties, as declared by each of them, definitely excluded those territories;

(b) and, even if it were otherwise, the Ottoman Empire, by a subsequent complete and *definitive* law—i.e. the law ratifying the Treaty of Athens—replaced the *provisional* law of 1913; and the latter law, being thus legally disapproved, in so far as concerns the territories occupied by Greece in April 1913, failed to comply with the conditions of substance and form required by Ottoman law; this cancelled provisional law could not therefore be invoked against the Porte, nor, in consequence, against the succession States of the Ottoman Empire.

II.

Assuming that the contract of April 14th, 1913, between the French firm Collas & Michel and the Ottoman Government was valid, as between the contracting Parties, could it be binding upon Greece as regards lights in territories which were under military occupation by that country, and which, when the contract in issue was signed, it had been decided by the Great Powers (and more especially by France), with the agreement of Turkey, that Greece was to annex?

There is a general principle of law which must not be lost sight of in the case we are considering; it is summed up in five words: *Nemo dat quod non habet*.

And so, in order to answer the question, we must ask ourselves whether Turkey, in April 1913, was enjoying the usufruct and administration of the property forming the subject of the contract of that date; or whether—supposing that she no longer enjoyed them—she could have recovered them at some later moment.

It is abundantly clear, in my opinion, that if Turkey no longer enjoyed the usufruct and administration, it was not possible for her to cede them, however much she might have wished to do so, and however complete the legal forms with which the contract of concession was surrounded.

Nemo dat quod non habet.

That principle has served as the basis of several modern codes (e.g. Art. 1599 of the French Civil Code; Art. 1459 of the Italian Civil Code; Art. 1507 of the Netherlands

Code), which lay down that the sale of another's property *is voidable*.

Following on these considerations, the question arises what is the extent of the occupying State's powers in regard to *administration* and the collection of taxes, in the case of territories occupied by the said State in the course of a war?

And, on the other hand, what are the powers of the government of an occupied country over such territories, in regard to administration and the collection of taxes?

On this point there is no difference of opinion, so far as I am aware, between legal writers.

Without going into the general legal aspects of the question, I will examine more particularly the granting of leases or concessions in respect of public property belonging to the State whose territory is occupied.

Naturally, these learned writers do not mention lighthouses; but they have definitely decided the issue in the case of railways. I will give some extracts, substituting the word "lighthouses" for "railways":

(*Fauchille*, Vol. II, p. 257.) "The occupying Power may have the operating of the lights for the duration of the occupation. But he may not alienate the lighthouses, for he is not yet the owner, and he will only become the owner if the conquest is definitive."

Consequently, and all the more certainly after the conquest had become definitive, the occupying State—i.e. Greece, in this case—could alone have had power to grant concessions.

Of course, the *occupying* State, when leasing an object, that is to say, when granting concessions, is bound to respect acquired rights, but only those that were acquired before the occupation. For during the occupation—it is self-evident—the occupying State alone enjoys the usufruct of the public property in the territories which he occupies. All learned writers, or at least all that I have read, are agreed upon this general principle.

I myself, in a note in the second volume of my treatise on international law (p. 407), have distinctly laid down the doctrine, in connection with two Greek decrees issued in 1898 concerning Thessaly, that the government of a country whose territories are occupied cannot enact administrative or financial laws concerning such territories except for the period beginning with the end of the occupation.

I have heard Article 55 of the Fourth Convention of The Hague of 1907 invoked in support of the contrary view. But that Article merely confirms the doctrine that I have just been maintaining; for it says that the occupying State *is the administrator and usufructuary of the public property of the enemy State*. That simply means that it is not the latter State that administers the said property.

But, if the State whose territories are occupied does not enjoy either the usufruct or the administration of its public property situated in these territories, during the occupation, the said State cannot assuredly be deemed to have regained the administration of the property at a period when it has lost even its sovereignty over the territories in which it is situated.

Consequently, if Turkey had lost the administration of the territories occupied by Greece and the usufruct of the public property situated in the said territories, long before the signature of the contract of 1913, and if she subsequently lost the sovereignty over these territories, how could she have been able, legally, to grant concessions in favour of third parties, seeing that the term concession implies the cession of a right, and is a procedure of an essentially *administrative character*?

In opposition to this legal conception of the powers conferred on the occupying State by international law, the preparatory discussions of the Hague Convention of 1899 have been invoked, and in particular the words of the Belgian delegate, M. Beernaert, who admitted that *"that is the way it has always happened, and the way it will no doubt continue to happen until mankind has renounced war"*, but went on to submit that, *in his view*, "they should only adopt rules which, while accepting the fact, without acknowledging the right of the victor, would imply an obligation for the latter to moderate the exercise of the right". The Conference, it may be added, shared the speaker's opinion, which was also set forth in M. Édouard Rolin's report.

However, if the preparatory discussions of the Hague Conference and the terms of Article 55 of Convention V concerning the laws and customs of war on land are read in conjunction, can it really be contended that, when that Article lays down that the occupying State is the *administrator and usufructuary of the public property of the enemy State*, that Article, at the same time, *DEPRIVES* the occupying State of the above rights and declares that they only pertain to the State that possesses the sovereignty? In my opinion, if such an interpretation were correct, Article 55 would have to be considered as laying down rules which flatly contradict one another.

Such a conclusion is inadmissible. When Article 55 of the Hague Convention No. V admitted the right of the occupying Power to be the administrator and usufructuary of the public property of the occupied State, its object was—it is true—to set a limit to the powers of the occupying State—powers which are often pushed very much further; but the Article certainly did not set out to abolish those rights altogether,

for then all administration of occupied territories would become an impossibility. So when it is contended that the Hague Convention does not allow *any rights* to the occupying Power, and that *all rights* continue to be vested in the occupied State, that—at any rate in my opinion—is assuredly an erroneous view, both from the standpoints of fact and of international law.

If it were otherwise, Article 55 of the Hague Convention would simply have created an insoluble contradiction between the rights and powers of the occupying State and those of the occupied State; and if, finally, in view of this contradiction it were ruled that the rights of the occupied State ought to prevail, the latter State would be entitled after, or perhaps even during, the war to claim damages against the individuals to whom the occupying State had leased public property; such a result would be entirely unacceptable in the present state of international law.

As a fact, the question whether the limited powers which the Hague Convention allows the occupying State really amount to rights, and whether those rights are entitled to prevail where they come in conflict with rights which flow from sovereignty, and which continue to pertain to the occupied State, in spite of the occupation, has been settled by an arbitral award that decided a case of conflict between the powers of an occupying army and the rights which flow from sovereignty over the occupied country.

I refer to the celebrated award in the Casablanca case.

Without dwelling in detail on the defence put forward in that case by the eminent and lamented André Weiss, who submitted that “it is generally allowed that the military occupation of a country by a foreign army has, as its immediate result, a restriction of the occupied State’s sovereignty”, I will pass on to the award itself, which—delicately and gracefully, but none the less clearly—admitted not only the *de facto* power; but also *the rights* of the occupying State, and ruled that where these rights clashed with the legal sovereignty of the country, the former should prevail.

The contrary view according to which, in law, a State whose territories are in military occupation—or even, as in the case before us, occupied *animo domine*—is entitled, on the eve of accepting the dismemberment of its territories under occupation, to grant concessions expiring half a century later, thus converting into cash all the future revenues of these territories, would involve the inadmissible consequence that the succession State would be unable, owing to lack of revenues, to provide for the most elementary administrative requirements of the territories acquired by it.

Accordingly, in my view, and in accordance with the generally accepted rules of international law which are confirmed by Article 55 of the Hague Convention, the occupying State, which has the administration and usufruct of public property in the occupied territory, alone has power to grant concessions capable of application whilst the occupation continues. Speculators and the financial needs of dismembered countries may suffer, but that cannot be helped. The revenues of a territory must be devoted solely to the needs of that territory itself. This is an axiom of legal morality that international law cannot overlook.

Of course, the ordinary rules of international law to which I have alluded may be modified by international agreements to the contrary concluded between two countries; but, in the absence of such agreements, these rules cannot be regarded as set aside.

Thus, in the case before us, there is nothing to justify the assumption that they were set aside when the 1913 concessionary contract was signed; on the contrary, having regard to these rules, the contracting Parties could not for a moment have intended—which is acknowledged—that the contract that they were signing should cover the property of others. And these very same rules were applied: (1) when the Treaty of Athens (Art. 5)—which was expressly ratified by a Turkish law—only imposed upon Greece the obligation to respect rights acquired up to the time of the occupation, and (2) when, before the “Financial Commission on Balkan Affairs”, which sat at Paris in the same year, the Lighthouse Company raised no claim in respect of the period subsequent to 1924, that is to say, no claim based on the 1913 contract.

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It is, in my opinion, quite certain that such was the moral and legal position in 1913, in regard to the question before us.

Was this situation modified by Protocol XII of Lausanne?

In my view, certainly *not*.

For, in my view, in order to render this instrument applicable to the case before us, at all events the following conditions would be absolutely indispensable:

(1) that there should have been, before the signature of that instrument, a concessionary *contract* signed by the Porte and covering the territories detached from Turkey either under the Treaty of Lausanne or after the Balkan wars;

(2) that this contract should have been duly entered into (Art. 1 of the Protocol of Lausanne);

(3) that this contract should have been valid.

But, without undertaking a detailed examination of these conditions, it seems to me clearly to follow from the foregoing :

That the concessionary contract of April 14th, 1913, could not have been and was not intended to cover the territories occupied by Greece at that date, *and that, consequently, there was no concessionary contract at all in respect of these territories.*

That the Parties themselves definitely *acknowledged* that they had no such intention, by signing the Treaty of Athens and by limiting their claims to the period ending in 1924 when the question was put to them by the Financial Commission in 1913.

That this contract, even if it existed, was not duly entered into (see M. Anzilotti's dissenting opinion), because, in any case, a definitive Turkish law was necessary before it could be regarded as duly entered into.

That the provisional Turkish law—or decree law—which accompanied the contract, not only was not approved by the Turkish Parliament before the Treaty of Athens, but, on the contrary, was *definitely disapproved by the Turkish law* ratifying that Treaty.

That, accordingly, the law ratifying this Treaty is to be regarded, in accordance with the actual practice followed in Turkey which is confirmed by the legal opinion produced, as having revoked the previous provisional law.

Indeed, the terms of Article 5 of the Treaty of Athens, which are reproduced in full in the Turkish law of ratification, are directly opposed to the terms of the 1913 contract.

In these circumstances, my legal training renders it quite impossible for me even to admit the existence of a concessionary contract—much less of a concessionary contract duly entered into or even merely valid—made between the Turkish Government and the firm Collas & Michel, and which would be capable, pursuant to the terms of Protocol XII of Lausanne, of creating obligations incumbent either upon Turkey or—still less—upon Greece, in respect of the territories occupied by the latter Power in April 1913.

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The Court, in answering the question put to it in the Special Agreement, based its decision on Article 9 of Protocol XII; obviously, therefore, it could only have in view in its judgment the extent of the obligations imposed on Greece by that Article.

That is to say, it could only affirm:

That Greece, as Turkey's successor, should be regarded, in so far as concerns concessions, as subrogated as regards the "rights and obligations" already existing in favour of or resting upon Turkey and in respect of the territories *detached* from the latter country and assigned to Greece under the Treaty of Lausanne or after the Balkan wars.

Thus, in my opinion, the Court should *specifically* except: (a) territories which, though attributed to Greece after the Balkan wars or subsequently, had already ceased effectively to form part of the territories of the Ottoman Empire before the Balkan wars; (b) territories assigned to Greece by Powers other than Turkey.

The Court, however, holding that it is only asked by the Special Agreement for a decision of principle, has not thought it necessary to indicate by name the territories to which the terms of its judgment apply, and expresses no opinion on this point.

Accordingly, the question as to which these territories are remains open. It is to be hoped that the Parties will reach agreement on this point.

The undersigned, however, would have preferred that the Court should have definitely settled the whole of this dispute, by inviting the Parties to state their views. As this was not done, the answer given in the judgment appears to the undersigned to be *infra petita*.

Notwithstanding these considerations, and regarding the matter from the standpoint of justice, the undersigned holds that the Court's reservation is wholly justified and wholly adequate; he cannot therefore fail to subscribe to it.

(Signed) SÉFÉRIADÈS.